

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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JAMES WRIGHTEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. BRANDON  
GNANARAJ, Shield No. 24540 (Tax Id. No. 954871),  
Individually and in his Official Capacity, P.O. SHERIF  
BAKSH, Shield No. 449 (Tax Id. No. 933629),  
Individually and in his Official Capacity, and POLICE  
OFFICERS "JOHN DOE" #1-10, Individually and in  
their Official Capacity (the name John Doe being  
fictitious, as the true names are presently unknown),

Defendants.

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**SUMMONS**

Jury Trial Demanded

Plaintiff designates New York  
County as the place of trial.

The basis of venue is:  
CPLR § 504(3)

**To the above-named Defendants:**

**You are hereby summoned** to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK  
October 26, 2021

COHEN & FITCH LLP  
Attorneys for Plaintiff  
110 E. 59<sup>th</sup> St, Suite 3200  
New York, N.Y. 10022  
(212) 374-9115

TO:

GEORGIA PESTANA  
Corporation Counsel of the City of New York  
100 Church Street  
New York, New York 10007

P.O. BRANDON GNANARAJ, Shield No. 24540 (Tax Id. No. 954871)  
Strategic Response Group 1 – Manhattan  
524 W 42nd St, New York, NY 10036

P.O. SHERIF BAKSH, Shield No. 449 (Tax Id. No. 933629)  
Strategic Response Group 1 – Manhattan  
524 W 42nd St, New York, NY 10036

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Defendants.

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Plaintiff JAMES WRIGHTEN by his attorneys, COHEN & FITCH LLP, complaining of  
the defendants, respectfully allege as follows:

**FACTS**

1. Plaintiff JAMES WRIGHTEN is an African-American male and has been at all  
relevant times a resident of Bronx County in the State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly  
organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police  
Department, duly authorized public authorities and/or police departments, authorized to perform  
all functions of a police department as per the applicable sections of the New York State  
Criminal Procedure Law, acting under the direction and supervision of the aforementioned  
municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. BRANDON GNANARAJ, Shield No. 24540 (Tax Id. No. 954871), P.O. SHERIF BAKSH, Shield No. 449 (Tax Id. No. 933629), and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

### **The Incident**

8. On or about October 10, 2019, plaintiff JAMES WRIGHTEN was lawfully driving in the vicinity of 1<sup>st</sup> Ave. and E. 116<sup>th</sup> St, in the County, City, and State of New York.

9. At approximately 1:38 a.m., on the above-mentioned date and in the vicinity of the above-mentioned location, despite the fact plaintiff had not committed any traffic and/or equipment violations, nor any other crimes and/or violations of the law, plaintiff was pulled over by defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10.

10. Thereafter, defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 approached plaintiff's vehicle and requested plaintiff provide them with his license and registration. Plaintiff complied and provided the requested documents, all of which were valid.

11. Subsequently, defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 returned to their police vehicle, where they remained for several minutes, and then re-approached plaintiff's vehicle and directed him to exit same.

12. In response, plaintiff complied and exited said vehicle.

13. After plaintiff had exited his vehicle defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 began to search same. However, no contraband was recovered as a result of this search nor did plaintiff possess any contraband and/or have custody or control over same.

14. Additionally, defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 searched plaintiff's person and effects. However, no contraband was recovered as a result of this search nor did plaintiff possess any contraband and/or have custody or control over same.

15. At no time on October 10, 2019, did defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 possess probable cause and/or reasonable suspicion to search plaintiff's vehicle, person, and/or effects nor did they obtain voluntary consent from him to do so.

16. At no time on October 10, 2019, did defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's vehicle, person, and/or effects.

17. Thereafter, defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 placed plaintiff under arrest by handcuffing his arms tightly behind his back.

18. At no time on October 10, 2019, did defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

19. At no time on October 10, 2019, did defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

20. At no time on October 10, 2019, did plaintiff possess any contraband and/or controlled substances and/or forged instruments, nor did plaintiff have custody and control over any contraband and/or controlled substances and/or forged instruments, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found in his vehicle nor on his person or in his effects.

21. Subsequently, defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 placed plaintiff in an NYPD vehicle and transported him to a nearby police precinct.

22. Upon arrival at said precinct, plaintiff was searched again, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes by defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10.

23. Specifically, defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 charged plaintiff with Criminal Possession of a Forged Instrument, Criminal Possession of a Controlled Substance, and Unlawful Possession of Marijuana. However, at no time did plaintiff commit any of the aforementioned crimes and/or offenses nor possess any contraband or have custody or control over same, nor did he behave unlawfully in any way.

24. After being detained at the aforementioned precinct for several hours plaintiff was transported to Central Booking where he was searched, moved from cell to cell, and further detained until he was released following arraignment.

25. In connection with plaintiffs' arrest, defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Thereafter, defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 falsely stated that they had recovered one (1) vial of methylenedioxymethamphetamine (a.k.a "MDMA"), one (1) vial, and one (1) clear zip-lock containing marijuana, and a forged New York license from plaintiff.

26. As a result of the foregoing, plaintiff spent approximately twenty-four (24) hours in custody before he was released following arraignment. Thereafter, plaintiff was maliciously prosecuted and forced to make approximately one (1) additional court appearance, before all charges against him were dismissed in their entirety on or about January 14, 2020.

27. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, physical injuries and pain, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

### **FEDERAL CLAIMS**

#### **FIRST CLAIM FOR RELIEF**

#### **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

29. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

30. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

33. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING  
FALSE ARREST UNDER 42 U.S.C. § 1983**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

35. As a result of the aforesaid conduct by defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

36. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING  
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 created false evidence against the plaintiff.

39. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the New York County District Attorney’s Office – namely, the defendants falsely informed prosecutors that they had recovered one (1) vial of methylenedioxymethamphetamine (a.k.a “MDMA”), one (1) vial and one (1) clear zip-lock containing marijuana, and a forged New York license from plaintiff.

40. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

41. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

42. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF**  
**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

43. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

44. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 misrepresented and falsified evidence before the New York County District Attorney.

45. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

46. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

47. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

48. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

49. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

50. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

51. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

52. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

53. Defendants GNANARAJ, BAKSH, and/or “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

54. Specifically, defendants' GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff's arrest.

55. Notwithstanding the perjurious and fraudulent conduct of defendants GNANARAJ, BAKSH, and/or "JOHN DOE" #1-10, the criminal proceedings were terminated in plaintiff's favor on or about January 14, 2020.

56. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FIFTH CLAIM FOR RELIEF**  
**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

59. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
  - E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
60. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.
61. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
62. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
63. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
64. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
65. The acts complained of deprived the plaintiffs of their rights:
- A. Not to be deprived of liberty without due process of law;
  - B. To be free from seizure and arrest not based upon probable cause;
  - C. Not to have summary punishment imposed upon them; and
  - D. To receive equal protection under the law.

**WHEREFORE**, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York  
October 26, 2021

BY: \_\_\_\_\_/S\_\_\_\_\_  
ILYSSA FUCHS  
GERALD COHEN  
JOSHUA FITCH  
COHEN & FITCH LLP  
*Attorneys for Plaintiff*  
110 E. 59<sup>th</sup> St., Suite 3200  
New York, N.Y. 10022  
(212) 374-9115

**ATTORNEY'S VERIFICATION**

**ILYSSA S. FUCHS**, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff JAMES WRIGHTEN in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York  
October 26, 2021

\_\_\_\_\_/S\_\_\_\_\_  
**ILYSSA S. FUCHS**